



2026 South Dakota Legislature

House Bill 1095

HOUSE ENGROSSED

Introduced by: Representative Reimer

1 **An Act to modify provisions pertaining to the submission of a nominating petition.**

2 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF SOUTH DAKOTA:

3 **Section 1. That § 9-13-7 be AMENDED:**

4 **9-13-7.** No candidate for elective municipal office may be nominated unless the
5 candidate files a nominating petition with the municipal finance officer no later than five
6 p.m. ~~on the Tuesday seventy days before the date of the election. A petition is considered~~
7 ~~filed if it is mailed by registered mail by five p.m. on the last day to file a petition.~~ local
8 time, on the third Tuesday of March, for an election held on the first Tuesday after the
9 first Monday in June, or before five p.m. local time, on the third Tuesday of August for an
10 election held on the first Tuesday after the first Monday in November.

11 The petition must be on the form prescribed by the State Board of Elections and
12 must contain:

- 13 (1) The name of the candidate;
14 (2) The candidate's residential address;
15 (3) The candidate's mailing address, if applicable; and
16 (4) The office the candidate seeks.

17 If an individual who signs a petition lives within a second-class or third-class
18 municipality, the individual may give the individual's post office box number in lieu of a
19 street address.

20 The finance officer may only accept a nominating petition that is on the prescribed
21 form and was circulated and submitted pursuant to the provisions of this chapter and
22 chapter 12-6. The municipal finance officer or clerk shall verify by signature that the
23 nominating petition contains the minimum number of signatures of registered voters
24 within the municipality or ward, and that the candidate is a registered voter within the
25 municipality or ward. Upon verification, the filing of a nominating petition constitutes
26 nomination.

Section 2. That § 9-13-7.1 be AMENDED:

~~9-13-7.1. Any person who has filed a nominating petition pursuant to § 9-13-7 may withdraw from the nomination by a written request, signed by the person and properly acknowledged and filed with the finance officer of the municipality. The name of a withdrawn or deceased candidate may not be printed on the ballot if the candidate withdraws or dies no later than five p.m. on the deadline day for filing nominating petitions. If the withdrawal or death of a candidate occurs at any time prior to five p.m. on the deadline day for filing nominating petitions results in there being no contest on the ballot, that ballot need not be voted. In addition, if that contest constitutes the only ballot to be voted upon, then the election shall be canceled by the official in charge of the election and the unopposed candidate shall be issued a certificate of election.~~

Any candidate who has filed a nominating petition pursuant to § 9-13-7 may withdraw from the nomination by making a written request under oath. The candidate shall file the request with the municipal finance officer. The finance officer may not print the name of a candidate if the candidate withdraws or dies before five p.m. local time, on the first Thursday after the deadline for filing a nominating petition.

If the death or withdrawal of a candidate at any time before the withdrawal deadline results in the number of nominating petitions filed for the vacant position to be equal to or less than the number of vacancies, the contest may not be placed on the ballot, and the finance officer must issue a certificate of election to the unopposed candidate. If that contest is the only contest to be voted upon, the finance officer must cancel the election.

Section 3. That § 9-13-37 be AMENDED:

9-13-37. Any other provision of this chapter notwithstanding, the governing body of a municipality shall, in even-numbered years, hold the general municipal election in conjunction with the regular June primary election or the regular November general election. The expenses and governmental responsibilities of a combined election must be shared in a manner agreed upon by the governing body of the municipality and the board of county commissioners involved.

A nominating petition may not be circulated for signatures more than four months before the election before January first, for an election held on the first Tuesday after the first Monday in June, or June first, for an election held on the first Tuesday after the first Monday in November.

1 A nominating petition must be filed under the provisions of § 9-13-7 ~~at least~~
2 ~~seventy days before the election~~ before five p.m. local time on:

3 (1) The third Tuesday of March, for an election held on the first Tuesday after the first
4 Monday in June; or

5 (2) The third Tuesday of August, for an election held on the first Tuesday after the first
6 Monday in November.

7 The finance officer shall certify to the appropriate county auditor the ~~candidate~~
8 ~~names and ballot language to be voted on by the Thursday sixty-eight days before the~~
9 ~~election~~ name of each candidate who has qualified to be on the ballot and each ballot
10 question to be submitted to the voters, on or before the first Friday after the deadline for
11 filing the nominating petitions.

12 **Section 4. That § 12-5-3.11 be AMENDED:**

13 **12-5-3.11.** ~~If a the bylaws of a political party has no prescribed method of~~
14 ~~selection of slates do not prescribe a method of selecting a slate of delegates and~~
15 ~~alternates to its the party's national convention, the slates of delegates and alternates to~~
16 ~~the national convention shall must be elected by the primary. Names of candidates for~~
17 ~~delegates and alternates to the national convention, in number equal to the entire number~~
18 ~~of the delegates and alternates to be selected, shall be~~

19 The number of candidates comprising a slate of delegates and alternates must:

20 (1) Equal the number of delegates and alternates required to be selected from the
21 state; and

22 (2) Be grouped in a slate upon a single nominating petition, under the respective
23 designations upon a single nominating petition.

24 The nominating petition ~~shall~~ for a slate of delegates and alternates must contain
25 a statement indicating the ~~candidates for delegates~~ candidates' collective preference
26 choice for ~~President~~ president of the United States, ~~if any, or~~ or that the candidates have no
27 preference, or that the candidates are uncommitted. ~~No name of any candidate for~~
28 ~~delegate or alternate may be filed in~~ may be listed on the nominating petition of more
29 than one slate.

30 The nominating petition for a slate of delegates and alternates to a party's national
31 convention must be filed with the secretary of state after December thirty first and before
32 five p.m. central time on the third Tuesday of March before the date of the primary
33 election.

Section 5. That § 12-6-4 be AMENDED:

~~12-6-4. Except as provided by § 12-5-4 and as may be otherwise provided in chapter 12-9, no candidate for any office to be filled, or nomination to be made, at either or both the primary or general election, other than a presidential election, may have that person's name printed upon the official primary election ballot of that person's party, unless a petition has been filed on that person's behalf after December thirty first and by the last Tuesday of March at five p.m. local time before the date of the primary election. If the petition is mailed by registered mail by the last Tuesday of March at five p.m. local time before the primary election, the petition shall be considered timely submitted.~~

~~A nominating petition for national convention delegates and alternates as provided in § 12-5-3.11 shall be filed in accordance with the provisions of this section. Nominating petitions for all party and public offices except legislative and judicial offices shall be filed in the office of the county auditor of the county in which the person is a candidate. Nominating petitions for legislative and judicial office whether elected in one or more counties, and all other party and public offices to be voted on in more than one county shall be filed in the Office of the Secretary of State.~~

Except as otherwise provided by § 12-5-4 and chapter 12-9, a candidate for nomination or election to any office, other than a presidential election, may not have the candidate's name printed on the official primary election ballot of the candidate's political party, unless a petition has been filed on the candidate's behalf after December thirty-first, but before five p.m. local time on the third Tuesday of March before the date of the primary election.

A nominating petition must be filed:

(1) With the secretary of state, for:

(a) A legislative or judicial office; and

(b) Any office to be voted on by the voters of more than one county; and

(2) With the auditor of the county in which the individual is a candidate, for all county offices.

Section 6. That § 12-6-8.1 be AMENDED:

~~12-6-8.1. Any person may have his or her name withdrawn candidate may withdraw the candidate's name from the primary election by making a written request under oath. The candidate shall file the request shall be filed with the officer with whom the nominating petition was filed pursuant to § 12-6-4, not later than two days after the~~

~~last Tuesday in March at five p.m. If the request is mailed by registered mail not later than two days after the last Tuesday in March at five p.m., the request is properly filed. No, before five p.m. local time, on the first Thursday after the deadline for filing a nominating petition.~~

A name ~~that is~~ withdrawn pursuant to this section may not be printed on the ballots to be used at the election.

Section 7. That § 13-7-6 be AMENDED:

13-7-6. No candidate for elective school board membership may be nominated unless the candidate is a resident voter of the school district and unless the candidate files a nominating petition with the business manager of the school district. The candidate must file the nominating petition ~~no later than five p.m. on the Tuesday seventy days before the date of the election. The petition is considered timely filed if the petition is mailed by registered mail by five p.m. on the Tuesday seventy days before the date of the election~~ before five p.m. local time, on the third Tuesday of:

- (1) March, for an election held on the first Tuesday after the first Monday in June; or
- (2) August, for an election held on the first Tuesday after the first Monday in November.

The candidate shall sign a formal declaration of candidacy before the circulation of the petition. The petition must be signed by at least twenty voters of the school district or if the school district is divided into school board representation areas, the petition must be signed by at least twenty voters who reside within the school board representation area. ~~A nominating petition may not be circulated more than four months before the election. If the election is held on the first Tuesday after the first Monday in June, the candidate may not circulate a nominating petition before January first. If the election is held on the first Tuesday after the first Monday of November, the candidate may not circulate a nominating petition before June first.~~

An individual who signs a petition or the petition circulator shall write the individual's place of residence and date of signing. The petition circulator must verify the petition under oath.

The business manager shall verify by signature that the candidate is a resident voter of the school district and that the nominating petition contains the minimum number of signatures. Upon verification by the business manager, the filing of the nominating petition constitutes nomination and entitles the candidate to have the candidate's name placed on the ballot for the term the candidate specifies on the petition.

Section 8. That § 13-7-7 be AMENDED:

~~13-7-7. Any person who has filed a nominating petition pursuant to § 13-7-6 may withdraw from nomination by request in writing signed by the person and properly acknowledged and filed with the election official of the school district by five p.m. on the deadline day for filing nominating petitions. No name withdrawn may be printed on the ballots to be used.~~

Any candidate who has filed a nominating petition pursuant to § 13-7-6 may withdraw from the nomination by making a written request under oath. The candidate shall file the request with the school district's business manager. The business manager may not print the name of a candidate if the candidate withdraws or dies before five p.m. local time on the first Thursday after the deadline for filing a nominating petition.

If the death or withdrawal of a candidate at any time before the withdrawal deadline results in the number of nominating petitions filed for the vacant position to be equal to or less than the number of vacancies, the contest may not be placed on the ballot, and the business manager shall issue a certificate of election to the unopposed candidate. If that contest is the only contest to be voted upon, the business manager must cancel the election.

Section 9. That § 13-7-10.3 be AMENDED:

13-7-10.3. Any other provision of this chapter notwithstanding, the board of a school district shall, in even-numbered years, hold the school board election in conjunction with the regular June primary election or the regular November general election. Expenses of a combined election must be shared in a manner agreed upon by the school board and the boards of county commissioners involved. All other governmental responsibilities associated with holding elections under the provisions of title 12 and this chapter must be shared as agreed upon by the board of the school district and the boards of county commissioners involved.

The school election official shall certify to the appropriate county auditors the ~~candidate names and ballot language to be voted on by the Thursday sixty-eight days before the election~~ name of each candidate who has qualified for the ballot and each ballot question to be submitted to the voters, on or before the first Friday after the deadline for filing the nominating petitions.